

CUI

**JUSTIFICATION & APPROVAL FOR FEDERAL ACQUISITION REGULATION
SUBPART 16.5 ACQUISITIONS
EXCEPTION TO FAIR OPPORTUNITY**

Multiple Award Contract
Orders under Fair Opportunity
Federal Acquisition Regulation (FAR) 16.507-6(b), Defense FAR Supplement 216.505(b),
Procedures, Guidance, and Information 216.505(b)

Purchase Request Number: HQ01476114236
Joint Warfighting Cloud Capability (JWCC) Contract Number: HC105023D0005
Task Order (TO) Number: To be determined
Procurement Title: Cloud Environment - Off-Premise Segment 2
Estimated Value: [REDACTED]
Statutory and Regulatory Authority: 10 United States Code (U.S.C.) 3204(a) and
FAR 16.507-6(b)(2)

EXCEPTION TO FAIR OPPORTUNITY

Number: JA26-043

Upon the basis of the following justification, I, as the Head of Contracting Activity (HCA), hereby approve this exception to fair opportunity pursuant to the Statutory Authority of 10 U.S.C. 3204(a) and Regulatory Authority of FAR 16.507-6(b)(2).

1. REQUESTING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:
Missile Defense Agency (MDA)/Transportation and Information Technology Officer
730 Irwin Ave
Schriever Space Force Base, CO 80912

Contracting Activity:
Defense Information Systems Agency (DISA)/Defense Information Technology
Contracting Organization (DITCO)/Cloud Capabilities Section (PS8511)
2300 East Drive
Scott Air Force Base, IL 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S):

This action is to issue a firm-fixed price TO against the JWCC Indefinite Delivery/Indefinite Quantity (IDIQ) Contract for Cloud Environment - Off-Premise Segment 2. This TO will be issued directly to Amazon Web Services (AWS), Inc. The anticipated period of performance is for a base period of 12-months, one 12-month option period, and one 8-month option period. The total estimated value is [REDACTED], which will be funded by Research, Development, Test, & Evaluation (RDT&E) funds.

Controlled by: MDA
Controlled By: MDA/TF-CIO
CUI Category: PROCURE
Distribution/Dissemi
POC: JOSEPH PRETTY, [REDACTED]

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3. DESCRIPTION OF SUPPLIES/SERVICES:

This requirement is to provide cloud services and cloud support to MDA's current and future hybrid cloud environment at the Unclassified Impact Level (IL) 5, Secret IL6, Secret/Special Access Required (SAR)/Top Secret (TS) and TS/Sensitive Compartmentalized Information /SAR classifications.

The cloud services and resources required include, connectivity to the Cloud Service Provider (CSP), compute, memory, storage, networking, security, databases, applications, DevSecOps, containerization, orchestration, Cross Domain Solutions (CDS), Artificial Intelligence/Machine Learning (AI/ML), Anything as a Service, and cloud support. In addition, all use cases include MDA RDT&E, Next-Generation Missile Defense (NGMD) effort, functions and mission sets.

4. SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF AN EXCEPTION TO FAIR OPPORTUNITY:

(a) Exception to Fair Opportunity.

FAR 16.507-6(b)(2) - Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

(b) Justification.

(1) Description of the justification and discussion regarding cause of the sole source situation.

[REDACTED] This requirement is to continue services with AWS to meet this initiative. MDA's current need for compatible cloud services is driven by the size, complexity, and deep integration of MDA's existing accredited environment with AWS. MDA has made significant investments in the last 5-years in this environment, to include highly complex AWS-native integrations, specialized security architectures, and accredited CDS. Only AWS can meet the Government's requirements without leading to unacceptable delays in fulfilling the mandated expansion of missile defense capabilities and a substantial duplication of cost.

(2) Minimum Government requirements.

The solution must provide native compatibility with the existing environment's development, security, operations, model-based systems engineering, product lifecycle management, requirements management, data management, AI/ML, identity and access management, and computer network defense instances without modification or re-architecture. Additionally, the solution must provide an existing, operational, and fully accredited environment and CDS for data processing and transfer across IL5, IL6

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and TS classification levels. MDA must maintain and expand upon the pre-existing technical integrations within the Department of Defense (DoD) and [REDACTED]

(3) Proposed sole source contractor and demonstration of unique source.

AWS is the only CSP capable of maintaining and expanding MDA's existing AWS environment. AWS has historical knowledge, experience, skillsets, and architectural attributes to enable MDA to continue to fulfill its near-term and long-term mission requirements. No other CSP can offer the native compatibility required to seamlessly integrate with and expand upon the 5,000+ existing cloud instances without causing unacceptable service disruptions. A transition to any other CSP would not meet the Government's current requirement for compatibility and seamless integration with the existing environment as it would require a complex re-architecture of mission-critical applications built on AWS-specific application programming interfaces. AWS is uniquely positioned to meet MDA's requirement to connect to and integrate with existing mission owners across the DoW and IC that are operating solely in AWS to support NGMD efforts. No other CSP can provide this connectivity and integration while allowing the MDA's architecture to remain operational for persistent and expanding requirements.

(4) Procurement discussion.

The Government determined that any further efforts to solicit competition for this requirement are not feasible. MDA must meet urgent NGMD development, testing, integration, and fielding requirements in Fiscal Year (FY)26, and FY27 within required classification levels. MDA evaluated the capabilities of all four JWCC CSPs and the research confirmed that due to the complexity, scale, and existing security accreditations of MDA's current environment, a transition to any other CSP would not meet the Government's minimum need for compatibility and seamless integration with MDA's current environment, resulting in unacceptable delays and duplication of costs.

(5) Impact.

Mission Failure - MDA's capability and missions within AWS are critical to NGMD requirements and mission failure is not an option. Switching to a different CSP will not allow MDA to meet [REDACTED] NGMD timeline and will introduce unacceptable risk to the program by requiring a highly complex, costly, and lengthy transition. The only way to ensure MDA's mission success in meeting the NGMD requirements in the timeframe required is to procure these cloud services through AWS.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION:

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A determination that the price is fair and reasonable will be based on a comparison of the contractor's proposal to the Independent Government Cost Estimate and the previously negotiated JWCC Catalog pricing, including any discounts. These prices were previously found to be fair and reasonable and are based on the contractor's commercial pricing.

6. MARKET RESEARCH:

Market research for the basic JWCC IDIQ contracts was conducted and resulted in a signed market research report on November 9, 2021. This market research was revalidated and recertified on July 29, 2024 and on February 6, 2026. After a survey of the market, it was concluded that use of the JWCC IDIQ contract is in the Government's best interest due to technical feasibility, cost to the Government, and the DoD's mandate to procure cloud services through JWCC.

MDA conducted market research from December 10, 2025 – March 2, 2026, by reviewing the offerings within the JWCC catalog to determine which JWCC CSPs were capable of meeting the Government's requirement across the required classification levels. *Additional Research to Support an Exception to Fair Opportunity* was issued on February 23, 2026, wherein Google, Oracle, and Microsoft did not provide a formal response. AWS indicated their ability to support the required MDA cloud services at the IL5, IL6, and TS levels.

Based upon the responses, and independent market research conducted by MDA, it was determined that AWS is the only CSP capable of meeting the Government's need.

7. ANY OTHER SUPPORTING FACTS:

[REDACTED]

MDA's requirement is issued in direct support of the requirements and accelerated implementation plan mandated by [REDACTED]

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY:

- (a) To overcome future barriers to competition, MDA will continue to monitor the cloud market for agnostic tools to encourage competition, like enhancing its Infrastructure as a Service for transition into a containerized platform. This approach would enable multiple CSPs to meet mission requirements and provide flexibility to shift workloads based on cost and operational needs.
- (b) Procurement History: Not applicable

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TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Mr. Dave Doryland

SIGNATURE/DATE:

TITLE/AGENCY: Enterprise Architect (MDA)

PHONE:

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Mr. Joseph Pretty

SIGNATURE/DATE:

TITLE/AGENCY: COR, Missile Defense Agency (MDA)

PHONE:

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Corinne Heck

SIGNATURE/DATE:

TITLE/AGENCY/ORGANIZATION: Contracting Officer/DISA/DITCO/PS8511

PHONE:

HEAD OF THE CONTRACTING ACTIVITY APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed this review serves as approval.

NAME: Brian Leyda

SIGNATURE/DATE:

TITLE/AGENCY/ORGANIZATION: HCA, DISA/DITCO/PSD

PHONE:

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO
Darryl Boswell